



CHAPTER cxxxix.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Leith Corporation Tramways. A.D. 1904.
[22nd July 1904.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Leith Corporation Tramways Order Confirmation Act 1904. Short title.

A D. 1904.

S C H E D U L E.

LEITH CORPORATION TRAMWAYS.

Provisional Order to authorise the Provost Magistrates and Councillors of the Burgh of Leith to acquire Tramways by agreement to construct additional Tramways and a new street and to execute street improvements and for other purposes.

WHEREAS the burgh of Leith (in this Order called "the burgh") is a municipal burgh under the government of the provost magistrates and councillors thereof (in this Order called "the Corporation"):

And whereas the Edinburgh Street Tramways Company (in this Order called "the company") have constructed tramways in the burgh under the provisions of the Acts specified in the First Schedule to this Order:

And whereas the agreement set forth in the Second Schedule to this Order has been made between the Corporation of the one part and the company of the other part for the purchase by the Corporation of the tramways (in this Order called "the existing tramways") and undertaking of the company situate within the burgh being the whole tramways and undertaking now belonging to the company on the terms therein mentioned and it is expedient that the said agreement should be confirmed and that the Corporation and the company should be empowered to carry the same into effect:

And whereas the said agreement was submitted to and approved at a general meeting of the company and has received the sanction of the Board of Trade in pursuance of article five thereof:

And whereas it is expedient that the Corporation should be empowered to construct the additional tramways by this Order authorised and to work such additional tramways and also the existing tramways and to levy tolls rates and charges for the use

[4 EDW. 7.] *Leith Corporation Tramways Order* [Ch. cxxxix.]
Confirmation Act, 1904.

of the same and that further powers with regard to the adaptation of the existing tramways for working by mechanical power should be conferred upon the Corporation : A.D. 1904.
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And whereas it is expedient that the Corporation should be empowered to construct the street works by this Order authorised :

And whereas it is expedient that the Corporation should be authorised to borrow money for the purchase and adaptation of the existing tramways and the construction of the additional tramways and street works by this Order authorised :

And whereas plans and sections showing the lines and levels of the tramways street and other works by this Order authorised and showing the lands and other property required or which may be taken for the purposes or under the powers of this Order and also a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands and other property were duly deposited with the principal sheriff clerk of the county of the city of Edinburgh and with the principal sheriff clerk of the county of Midlothian and are herein-after respectively referred to as "the deposited plans sections and book of reference" :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited as the *Leith Corporation Tramways Order 1904* and shall come into operation at the date of the passing of the Act confirming the same which date is herein-after referred to as "the commencement of this Order." Short title.

2. This Order is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Tramways.

Part III.—Street works.

Part IV.—Lands.

Part V.—Financial.

Order
divided into
Parts.

A.D. 1904.

PART I.

PRELIMINARY.

Incorporation of
general Acts.

3. The following Acts and parts of Acts (that is to say) :—

The Lands Clauses Acts ;

Section 3 (Interpretation of terms) Part II. (Construction of Tramways) and Part III. (General Provisions) of the Tramways Act 1870 ;

so far as they are applicable to and are not varied by or inconsistent with the provisions of this Order are incorporated with and form part of this Order and shall apply to the undertaking.

Interpretation.

4. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Order unless the subject or context otherwise requires—

“The burgh” means the burgh of Leith ;

“The Corporation” means the provost magistrates and councillors of the burgh ;

“The Royal burgh” means the city and Royal burgh of Edinburgh ;

“The Edinburgh Corporation” means the lord provost magistrates and councillors of the royal burgh ;

“The company” means the Edinburgh Street Tramways Company ;

“The dock commissioners” means the commissioners for the harbour and docks of Leith ;

“The sheriff” means the sheriff of the Lothians and Peebles ;

“The proposed tramways” means the tramways by this Order authorised ;

“The existing tramways” means the tramways within the burgh constructed under the provisions of the Acts specified in the First Schedule to this Order ;

“The tramways” means the proposed tramways and the existing tramways ;

“The street works” means the new street and street improvements by this Order authorised ;

- “The Edinburgh Company” means the Edinburgh and District Tramways Company Limited; A.D. 1904.
- “The Police Acts” means the Burgh Police (Scotland) Acts 1892 to 1903 and any Acts amending the same;
- “The police rate” means the burgh general assessment leviable under the Police Acts;
- “Tramway revenue” means and includes all moneys received for or in relation to the tramways other than money borrowed and other money in the nature of capital;
- “Mechanical power” includes steam electric and every other motive power not being animal power;
- “Engine” includes motor.

PART II.

TRAMWAYS.

5. The agreement set forth in the Second Schedule to this Order made between the Corporation of the one part and the company of the other part is hereby confirmed and made binding on the Corporation and the company and shall be carried into effect accordingly.

Confirmation
of scheduled
agreement.

6. Subject to the provisions of this Order the Corporation may make form lay down work use and maintain the proposed tramways herein-after described in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all necessary and proper rails plates foundations sleepers tubes pulley pits underground chambers shafts manholes drains platforms junctions turn-tables turn-outs crossings crossovers passing places sidings pillars posts poles brackets cables chains wires electric feeders conductors section-boxes engines dynamos approaches waiting rooms stables engine houses carriage houses depôts buildings sub-stations apparatus machinery appliances works and conveniences connected therewith and equip the same with the necessary plant and rolling stock and may take up remove appropriate and use any parts of the existing tramways which may be situate between the termini of any of the proposed tramways Provided that nothing in this Order shall authorise any interference with any electric lines or works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 (Power to undertakers to alter position of pipes and

Power to
make and
work tram-
ways.

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 EDW. 7.]
Confirmation Act, 1904.

A.D. 1904. wires) of the former Act apply except in accordance with such provisions.

The proposed tramways herein-before referred to and authorised by this Order will be situate partly in the burgh and partly in the Royal burgh and are—

Tramway No. 5.—(A double line) 1·85 chains or thereabouts in length commencing in the burgh by a double junction with the existing tramway of the company in Leith Walk at a point 80 feet or thereabouts south of the produced line of the northern building line of Iona Street passing thence round in a westerly direction into Pilrig Street and terminating partly in the Royal burgh and partly in the burgh at a point in Pilrig Street 45 feet or thereabouts north-west of the produced line of the west parapet wall of Leith Walk there:

Tramway No. 6.—6 furlongs 3 chains or thereabouts in length of which 6 furlongs 1·3 chains or thereabouts will be a double line and 1·7 chains or thereabouts will be a single line commencing notwithstanding anything shown on the deposited plans and sections partly in the Royal burgh and partly in the burgh by a double junction with Tramway No. 5 at its termination in Pilrig Street passing thence along that street and Newhaven Road (partly in the Royal burgh and partly in the burgh) and terminating in the burgh by a junction with the existing tramway of the company in Newhaven Road at a point 20 feet or thereabouts north-west of the produced line of the northern building line of Ferry Road:

Tramway No. 7.—(A double line) 5 furlongs 6 chains or thereabouts in length wholly in the burgh commencing by a double junction with the existing tramway of the company in Leith Walk at a point 78 feet or thereabouts south of the produced line of the northern building line of Iona Street passing thence into and eastwards along Iona Street thence into and northwards along Easter Road and terminating by a double junction with Tramway No. 18 after described in Vanburgh Place at a point 30 feet or thereabouts east of the produced line of the eastern building line of Easter Road:

Tramway No. 8.—(A double line) 3·5 chains or thereabouts in length wholly in the burgh commencing by a double junction

with Tramway No. 7 above described in Easter Road at a point 40 feet or thereabouts south of the produced line of the southern building line of Duke Street passing thence into and westwards along Duke Street and terminating by a double junction with Tramway No. 18 after described at a point 115 feet or thereabouts westwards of the produced line of the western building line of Easter Road : A.D. 1904.

Tramway No. 9.—(A doubling of the existing tramway) 2 furlongs 6·8 chains or thereabouts in length wholly in the burgh commencing in Newhaven Road at a point 45 feet or thereabouts north of the produced line of the north parapet wall of Ferry Road passing thence northwards along and terminating in Newhaven Road at a point 60 feet or thereabouts south of the produced line of the southern parapet wall of Stanley Road there :

Tramway No. 10.—(A doubling and alteration of the existing tramway) 1 furlong 4·42 chains or thereabouts in length of which 1 furlong 0·16 chain or thereabouts will be a double line and 4·26 chains or thereabouts will be a single line wholly in the burgh commencing in Newhaven Road at the termination of Tramway No. 9 passing thence round into and along Stanley Road in a westerly direction and thence northwards into and terminating in Craighall Road at a point 60 feet or thereabouts north of the produced line of the northern wall of Stanley Road there :

Tramway No. 11.—(A doubling of the existing tramway) 1 furlong 6·5 chains or thereabouts in length wholly in the burgh commencing in Pier Place (Newhaven) at a point 68 feet or thereabouts east of the produced line of the east building line of Craighall Road passing thence in an easterly direction along Pier Place then southwards into St. Andrew Square (Newhaven) thence in an easterly direction along and terminating in Main Street at a point 24 feet or thereabouts east of the produced line of the west building line of Whale Brae :

Tramway No. 12.—(A double line) 1 furlong 7 chains or thereabouts in length wholly in the burgh to be laid in the proposed new street after described commencing by a double junction with the existing tramway in Pier Place (Newhaven) passing thence eastwards along the said new street near the Fish House in Newhaven to and terminating in the street

A.D. 1904.

known as Annfield by a double junction with Tramway No. 13 after described at a point 410 feet or thereabouts west of the produced line of the west building line of Hawthorn Vale. Provided that the construction of Tramway No. 12 shall not be commenced until the new street by this Order authorised shall be approaching completion :

Tramway No. 13.—(A doubling of the existing tramway) 6·35 chains or thereabouts in length wholly in the burgh commencing in Annfield aforesaid at a point 486 feet or thereabouts west of the produced line of the west building line of Hawthorn Vale passing thence in an easterly direction along Annfield and terminating at a point 70 feet or thereabouts west of the produced line of the west building line of Hawthorn Vale :

Tramway No. 14.—(A doubling of the existing tramway) 2 furlongs 1·8 chains or thereabouts in length wholly in the burgh commencing in Lindsay Road at a point in the produced line of the west building line of George Street passing thence in an easterly direction along Lindsay Road, Hamburgh Place and Portland Place, and terminating in Commercial Street at a point 200 feet or thereabouts east of the produced line of the east building line of Albany Street :

Tramway No. 15.—(A doubling of the existing tramway) 5·3 chains or thereabouts in length wholly in the burgh commencing in Bernard Street or Shore of Leith at a point 7 feet or thereabouts east of the eastern edge of the turntable pit of the swing bridge over the Water of Leith passing thence in an easterly direction to along and terminating in Bernard Street at a point 160 feet or thereabouts west of the produced line of the west building line of Bank Street :

Tramway No. 16.—(A doubling of the existing tramway) 2 furlongs 2·7 chains or thereabouts in length wholly in the burgh commencing in Constitution Street at a point 78 feet or thereabouts north of the produced line of the north building line of Charlotte Street passing thence southwards along Constitution Street to and terminating at the foot of Leith Walk at a point 5 feet or thereabouts south of the produced line of the south building line of Duke Street :

[4 EDW. 7.] *Leith Corporation Tramways Order* [Ch. cxxxix.]
Confirmation Act, 1904.

Tramway No. 17.—5·1 chains or thereabouts in length of which 4·24 chains or thereabouts will be a double line and 0·86 chain or thereabouts will be a single line wholly in the burgh commencing by a double junction with the existing tramway in Leith Walk at a point 70 feet or thereabouts south of the produced line of the southern building line of Duke Street passing thence into and in an easterly direction along and terminating in Duke Street by a junction with the existing tramway at a point 223 feet or thereabouts east of the produced line of the east building line of Leith Walk : A.D. 1904.

Tramway No. 18.—(A doubling of the existing tramway) 6 furlongs 2 chains or thereabouts in length wholly in the burgh commencing in Duke Street at a point 95 feet or thereabouts east of the produced line of the east building line of Glover Street passing thence eastwards along Duke Street Vanburgh Place Hermitage Place East Hermitage Place and Claremont Park thence northwards into and terminating in Seafield at the termination there of the existing tramway :

Tramway No. 19.—(A doubling of the existing tramway) 3 furlongs 0·3 chain or thereabouts in length wholly in the burgh commencing in Ferry Road at a point 35 feet or thereabouts west of the produced line of the west building line of North Junction Street passing thence westwards along and terminating in Ferry Road at a point 30 feet or thereabouts east of the produced line of the north-east building line of Newhaven Road :

Tramway No. 20.—(A double line) 3 chains or thereabouts in length wholly in the burgh commencing by a double junction with Tramway No. 17 above described in Duke Street at a point 30 feet or thereabouts east of the produced line of the east building line of Leith Walk passing thence westwards into and terminating in Great Junction Street by a double junction with the existing tramway at a point 70 feet or thereabouts west of the produced line of the west building line of Leith Walk :

Tramway No. 21.—(A doubling of the existing tramway) 2 chains or thereabouts in length wholly in the burgh commencing by a double junction with Tramway No. 16 above described at a point in Constitution Street 10 feet

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 EDW. 7.]
Confirmation Act, 1904.

A.D. 1904.
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or thereabouts north of the produced line of the north building line of Duke Street passing thence westwards towards Great Junction Street and terminating by a double junction with Tramway No. 20 above described at a point at the foot of Leith Walk 36 feet or thereabouts east of the produced line of the west building line of Leith Walk.

Period for
completion
of tramways.

7. If the proposed tramways shall not be completed within five years from the commencement of this Order then on the expiration of that period the powers by this Order granted for making or completing the same or otherwise in relation thereto respectively shall cease except as to so much thereof as shall then be completed.

Inspection
by Board of
Trade.

8. The proposed tramways shall not be opened for public traffic until they have been inspected and certified to be fit for such traffic by the Board of Trade.

Tramways
to be kept
on level of
surface of
road.

9. If and whenever after the commencement of this Order the Corporation or any other road authority alter the level of any road along or across which any part of the tramways is laid or authorised to be laid the Corporation may and shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Plan of pro-
posed mode
of construc-
tion.

10. In addition to the requirements of section 26 (Power to break up streets &c.) of the Tramways Act 1870 the Corporation shall at the same time as they give notice to the road authority of their intention to open or break up any road for the purpose of constructing and laying down any of the proposed tramways lay before the Board of Trade a plan showing the proposed mode of constructing and laying down such tramways and a statement of the materials intended to be used therein and the Corporation shall not commence the construction or laying down of any of such tramways or part of any of such tramways respectively except for the purpose of necessary repairs until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement and under the superintendence and to the reasonable satisfaction of the surveyor of the road authority as provided by section 26 of the said Act.

[4 EDW. 7.] *Leith Corporation Tramways Order* [Ch. cxxxix.]
Confirmation Act, 1904.

11. The materials with which and the manner in which the Corporation shall maintain and keep in good condition and repair the portion of the road referred to in section 28 (Repair of part of road where tramway is laid) of the Tramways Act 1870 shall be such as may be agreed between the local authority and the Corporation or in case of difference between them as may be determined by the Board of Trade on the application of either party.

A.D. 1904.

Repair of
part of road
where tram-
way is laid.

12. The tramways shall be constructed on a gauge of four feet eight and a half inches. Provided always that so much of section 34 (Power for promoters to use tramways with flange-wheeled carriages &c.) of the Tramways Act 1870 as limits the extent of the carriage used on any tramway beyond the outer edge of the wheels of such carriage shall not apply to carriages used on the tramways but no engine carriage or truck used on the tramways shall exceed seven feet or such less width as may from time to time be prescribed by the Board of Trade.

Gauge of
tramways.

13. The rails of the tramways shall be such as the Board of Trade may approve.

Rails of
tramways.

14.—(1) The Corporation shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the substructure upon which the same rest and if the Corporation at any time fail to comply with this provision or with the provisions of section 28 (Repair of part of road where tramway is laid) of the Tramways Act 1870 as varied by this Order they shall be subject to a penalty not exceeding five pounds and to a daily penalty not exceeding five pounds.

Penalty for
not main-
taining rails
and roads.

(2) In case it is represented in writing to the Board of Trade by the local authority or the road authority of any district in which the tramways or any portion thereof are or is situate or by twenty inhabitant ratepayers of such district that the Corporation have made default in complying with the provisions in this section contained or with any of the requirements of section 28 (Repair of part of road where tramway is laid) of the Tramways Act 1870 as varied by this Order the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary

Board of
Trade may
on complaint
inspect tram-
ways.

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 EDW. 7.]
Confirmation Act, 1904.

A.D. 1904. or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Corporation to such penalty or penalties in respect thereof as is or are by this section imposed.

Power to make additional cross-overs and to double tramway lines &c.

15.—(1) The Corporation may with the consent of the Board of Trade and subject to the provisions of this Order make maintain alter remove or abandon such crossings cross-overs passing-places deviations sidings junctions curves turn-outs turn-tables and other works in addition to those particularly specified in this Order as they find necessary or convenient for the efficient working of the tramways or for facilitating the passage of traffic along streets or roads or for providing access to any generating stations engine houses stationary engines stables carriage houses works or buildings of the Corporation or with the consent of the Edinburgh Corporation for forming junctions with any tramways of the Edinburgh Corporation or the Edinburgh Company or with the like consent abandon the same.

(2) Notwithstanding anything shown on the deposited plans the Corporation may with the consent of the Board of Trade lay down double lines in lieu of single or interlacing lines or single lines in lieu of double or interlacing lines or interlacing lines in lieu of double or single lines on any of the tramways and if at any time the road in which any tramway or part thereof is authorised to be laid or is laid has been or shall be altered or widened the Corporation may with the like consent construct such tramway or part thereof or (as the case may be) take up or reconstruct the same in such position as they may think fit.

(3) Provided that if in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Corporation shall not less than one month before commencing the works give notice in writing to every owner and occupier of any houses shops or warehouses abutting on the place where such less space would intervene and such rail shall not except with the consent of the Board of Trade be so laid if the owners or occupiers of one-third of such houses shops or warehouses by writing under their hands addressed and delivered to the Corporation within three weeks after receiving the notice from the Corporation express their objection thereto.

[4 EDW. 7.] *Leith Corporation Tramways Order* [Ch. cxxxix.]
Confirmation Act, 1904.

16. Where by reason of the execution of any work affecting the surface and soil of any road along which any of the tramways is laid it is in the opinion of the Corporation necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Corporation may construct in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of a tramway so removed or discontinued.

A.D. 1904.

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Temporary tramways to be made where necessary.

17. Subject to the provisions of this Order the Corporation may during the execution of any works by this Order authorised stop up temporarily the carriageway or footway of any street road or bridge as they think necessary and for that purpose may put up bars posts and other erections Provided that the Corporation shall before stopping up any footway under this section provide a temporary substitute therefor.

Stoppage of roads during execution of works.

18. Every local authority shall at all times have free access to and communication with all their sewers and drains and power to lay lateral and private drains to communicate therewith without the consent or concurrence of the Corporation and the provisions contained in sections 32 (Rights of authorities and companies &c. to open roads) and 33 (Difference between promoters and road authority) of the Tramways Act 1870 shall be applicable in the case of any sewer or private drain of or under the control of any local authority as if the same were a pipe for the supply of gas or water.

Local authority to have access to sewers.

19. Any paving metalling or material excavated by the Corporation from any road under the jurisdiction or control of any local authority or road authority other than the Corporation may be applied by the Corporation so far as may be necessary in or towards the reinstatement of the road and the maintenance for six months after completion of any of the tramways within the district of such local authority or road authority of so much of the roadway on either side of such tramways as the Corporation are by section 28 (Repair of part of road where tramway is laid) of the Tramways Act 1870 as varied by this Order required to maintain and the Corporation shall if so required deliver the surplus paving metalling or material not used or required to be retained for the purposes aforesaid to the surveyor of the local authority or road authority or to such person or persons as he may appoint to receive the same Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving

Application of road materials excavated in construction of works.

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 Edw. 7.]
Confirmation Act, 1904.

A.D. 1904. — metalling or material and notice duly given such surplus is not removed by such surveyor or by some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Corporation and may be dealt with removed and disposed of by them in such manner as they may think fit Any difference between the Corporation and any local authority or road authority or surveyor or other person with reference to any of the matters aforesaid shall be settled by a referee to be nominated by the Board of Trade on the application of either party.

For pro-
tection of
Edinburgh
Corporation.

20. Whereas Tramway No. 6 will be partly situate in the Royal burgh and it is expedient to make provision for the joint use thereof by the Edinburgh Corporation and the Corporation Be it enacted that unless otherwise agreed upon between the Edinburgh Corporation and the Corporation the following provisions shall have effect (that is to say) :—

(1) At any time after the opening of Tramway No. 6 for public traffic the Edinburgh Corporation shall on giving six months' previous notice to the Corporation be entitled to and may acquire from the Corporation a joint right in Tramway No. 6 and the overhead electrical equipment thereof on such terms (not being less than one half of the original cost of construction less depreciation) as may be agreed on between the said Corporations or failing agreement determined by an arbiter mutually agreed upon or failing agreement nominated by the Board of Trade on the application of either of the said Corporations :

(2) Upon the acquisition of such joint right as aforesaid by the Edinburgh Corporation that corporation may form junctions between Tramway No. 6 and their existing tramways in the Royal burgh and also between Tramway No. 6 and any tramways which may hereafter be constructed or worked by them or by any person with their consent therein and the Edinburgh Corporation and any such person (with the consent of that corporation) may exercise a joint right of user over Tramway No. 6 on such terms and subject to such conditions (including maintenance and the rates fares and charges to be taken by the said Corporations respectively for the use thereof and the division and apportionment of such

rates fares and charges) as may be agreed upon between the said Corporations or failing agreement be determined by arbitration as aforesaid :

A.D. 1904.
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(3) Tramway No. 6 shall be worked by electrical energy or by such other mechanical power as may be proposed by the Corporation and approved by the Edinburgh Corporation except in cases of emergency when animal power may be used :

(4) Except for the purpose of constructing maintaining working and lighting Tramway No. 6 none of the powers conferred on the Corporation by this Order shall be exerciseable by them within the Royal burgh.

21. In the event of the Corporation resolving to adopt cable power for the purpose of moving carriages upon the tramways the following provisions for the protection of the Edinburgh and District Water Trustees (herein-after called "the water trustees") and the Edinburgh and Leith Corporations Gas Commissioners (herein-after called "the gas commissioners") shall unless otherwise agreed upon between the Corporation and the water trustees or the gas commissioners as the case may be have effect (that is to say) :—

For protec-
 tion of water
 and gas
 mains and
 pipes.

Notwithstanding anything contained in the Tramways Act 1870 the Corporation shall not in converting the tramways into cable tramways themselves alter or interfere with the existing lines or levels of the mains aqueducts conduits or lines of pipes and apparatus connected therewith or any of them belonging to the water trustees or to the gas commissioners including consumers' pipes nor injuriously affect or interrupt the supply of water or gas conveyed by the same but all such alterations on or interference with the mains aqueducts conduits or lines of pipes and apparatus connected therewith of the water trustees or of the gas commissioners including consumers' pipes as in the opinion of the engineer of the water trustees or the gas commissioners as the case may be are necessary in consequence of the conversion of the tramways into cable tramways shall be executed by the water trustees or by the gas commissioners as the case may be at the expense of the Corporation and the water trustees and the gas commissioners shall at all times have respectively a right of access to such mains aqueducts conduits

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 EDW. 7.]
Confirmation Act, 1904.

A.D. 1904.

or lines of pipes and apparatus connected therewith including consumers' pipes for the renewal repair enlargement alteration and maintenance of the same and for making new connections and laying additional pipes when and where they shall see fit and any additional cost of such alterations or repairs caused by the works of the Corporation in any road or street where any such mains aqueducts conduits or lines of pipes and apparatus connected therewith including consumers' pipes shall have been laid before the conversion of such tramways into cable tramways shall be borne by the Corporation And in all cases where works are to be executed by the water trustees or by the gas commissioners as the case may be to be paid for by the Corporation the water trustees or the gas commissioners as the case may be shall use every means in their power to have the work executed as economically as possible but should any dispute arise between the parties as to the cost thereof the same shall be decided by an engineer to be mutually agreed on or failing agreement by an engineer to be appointed by the sheriff on the application of either the Corporation or the water trustees or the gas commissioners as the case may be and all payments for work executed by the water trustees or by the gas commissioners as the case may be shall be made by the Corporation within three months after the cost of the work has been certified by the water trustees' or the gas commissioners' engineer with interest till paid.

For protection of commissioners for harbour and docks of Leith.

22. In adapting working using and maintaining the tramways upon or along that part of the tramway route extending westward from the west end of Bernard Street to a point sixty feet or thereabouts west of the west end of Commercial Street or upon or along the Bonnington Bridge and in acquiring the lands for constructing the new street Work A at Newhaven by this Order authorised and forming such new street and laying tramways thereon or otherwise in exercise of the powers of this Order the following provisions for the protection of the dock commissioners shall notwithstanding anything in this Order contained and unless otherwise agreed apply and have effect (that is to say) :—

- (1) The Corporation shall not (except in case of emergency) stop any engines carriages or trucks on the shore of Leith between Bernard Street and the swing bridge

A.D. 1904.

there across the river or water of Leith nor save as aforesaid on the said bridge nor save as aforesaid at any point in Commercial Street opposite or within fifteen feet on either side of any of the entrances to the docks from that street nor shall they erect above the ground level any standards or apparatus other than overhead wires for working the tramways by mechanical power on the carriageway of that street opposite to or within twenty-five feet on either side of any such entrance except that the Corporation may if necessary place a standard between the two entrances to the docks at Citadel. In the event of any alteration or re-arrangement of the said two entrances being at any time hereafter determined on by the dock commissioners the Corporation shall if so required by the dock commissioners remove such last-mentioned standard and re-erect the same in such altered position as may be agreed upon between the Corporation and the dock commissioners or as failing agreement may be determined by arbitration in manner provided in subsection (11) of this section :

- (2) The Corporation shall not run any engine carriage or truck exceeding ten and one-half tons in weight on the tramways upon or over the said swing bridge :
- (3) The maintenance of the said swing bridge shall continue to be incumbent upon the dock commissioners but that only to the extent to which it is incumbent upon them immediately before the passing of this Order and nothing in this Order contained shall operate to increase or diminish the extent of such obligation. Should the exercise of the powers by this Order conferred upon the Corporation additional to those conferred upon the company by the Acts specified in the First Schedule to this Order cause the cost of such maintenance to be increased such increase shall be repaid by the Corporation to the dock commissioners. The working of the said swing bridge and of the relative machinery and apparatus shall be under the exclusive management and control of the dock commissioners and the bridge shall be worked when and in such manner as the superintendent or other person authorised by the dock

A.D. 1904.

commissioners shall deem proper having regard to the general convenience of the road tramway and water traffic. Provided that if any difference shall arise between the dock commissioners and the Corporation as to the exercise by the superintendent of the harbour and docks of Leith or other person authorised by the dock commissioners of the powers conferred upon him by this subsection such difference shall be referred to and determined by the sheriff in a summary manner :

- (4) The Corporation shall not execute any works authorised by this Order upon or over the said swing bridge nor upon or over or under the quays or walls of the river or water of Leith or harbour nor upon over or under the bed of the said river water or harbour nor under the portion of the shore of Leith between the west end of Bernard Street and the swing bridge nor shall they interfere with or affect the structure of the said bridge quays or walls but all such works shall be executed by the dock commissioners in concert with the engineer of the Corporation in regard to all matters relating to the fitness of the bridge for tramway traffic at the expense of the Corporation in accordance with such plans sections and specifications to be prepared by the Corporation as shall be approved by the dock commissioners or in case of disapproval as may be determined by arbitration as herein-after in this section provided :
- (5) In case any strengthening or alteration of the swing bridge is or shall become necessary by reason of the construction of any of the works by this Order authorised or the use thereon of any engine carriage or truck of such weight or design as to be liable to occasion undue strain or other damage to the said bridge such strengthening or alteration shall be carried out by the dock commissioners at the expense of the Corporation and the Corporation shall also defray any additional expense which the dock commissioners may incur in maintaining or repairing the said bridge consequent on any such strengthening or alteration. Provided that any strengthening or alteration which is or may from time to time so become necessary shall be carried out and completed before any such engines carriages or

trucks shall be permitted by the Corporation to run on the tramways upon or over the said swing bridge : A.D. 1904.

- (6) In the event of the tramways being worked by electrical energy on the overhead or trolley system any brackets wires or other apparatus attached to any building or other property or work belonging to the dock commissioners except the said swing bridge shall if required by the dock commissioners be removed by the Corporation within one month from the date of a requisition to that effect :
- (7) Notices similar to those which the Corporation are required to serve on a road authority under the Tramways Act 1870 and this Order shall be served by the Corporation upon the dock commissioners in respect of so much of the tramways as is situate between the west end of Bernard Street and the said point sixty feet west of Commercial Street :
- (8) The Corporation shall pay to the dock commissioners compensation for all damage that may be sustained by them by or through the adaptation use maintenance or working of the tramways on the said swing bridge or adjoining quays :
- (9) The Corporation shall not without the consent in writing of the dock commissioners enter upon take use or otherwise interfere with the property numbered 15 in the Royal burgh and city parish of Edinburgh and the property numbered 16 in the burgh and parish of Leith on the deposited plans being the river called the water of Leith at Bonnington Bridge :
- (10) The Corporation shall acquire only a right of user of so much of any property belonging or reputed to belong to the dock commissioners shown on the deposited plans as is necessary for the construction of the new street Work A and the Tramway No. 12 by this Order authorised :

Subject to the following stipulations namely :—

- (A) The Corporation shall within eighteen months from the commencement of this Order decide whether they shall enter upon so much of the property shown upon the deposited plans and numbered

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 Edw. 7.]
Confirmation Act, 1904.

A.D. 1904
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37 38 and 40 in the burgh and parish of Leith as is required for the said new street Work A and if they decide to so enter on such property they shall immediately thereafter proceed to lay out and form thereupon a good causewayed road with proper foundations footpaths curbs channels drains gratings and all necessary and usual adjuncts and shall sufficiently fence the same and they shall complete the said road and other works other than the said tramway within two years and six months from the commencement of this Order The said road and other works shall be formed on such lines and according to such levels within the limits of deviation shown upon the deposited plans and sections as may be agreed between the Corporation and the dock commissioners and for the purpose of forming the said road the Corporation shall be entitled in concert with the dock commissioners to remove or alter the erections or properties numbered 37 and 38 in the burgh and parish of Leith on the deposited plans all at the expense of the Corporation who shall make good or pay compensation for any damage other than consequential damage thereby occasioned to the dock commissioners and after the Corporation shall have formed the said road or simultaneously with the formation thereof they shall have power to make form and lay down thereon the Tramway No. 12 by this Order authorised within the period limited for its completion by this Order and upon the completion of the said road the rights authority and obligations of the dock commissioners in and to the same shall in all questions with the Corporation be identical with their rights authority and obligations in and to the street called Commercial Street Provided always that the dock commissioners shall have power at any time upon giving to the Corporation two years' notice in writing to terminate the rights of the Corporation in or to the said road or in or to any right of user thereof but only for the purpose of enabling the dock commissioners to resume to the same extent and effect as at the commencement of this Order the possession of the property on which the said road and adjuncts with the tramway thereon

A.D. 1904.

are formed or on which the Corporation shall have acquired any right of user under the authority of this Order and for the purpose of thereafter adapting the said ground to other purposes reasonably necessary for the extension or improvement of the dock commissioners' undertaking or for any scheme authorised or which may be authorised by Parliament connected therewith and in respect of the right of user to be enjoyed by the Corporation in terms of this subsection the Corporation shall at the term of Whitsunday yearly during their enjoyment of such right pay to the dock commissioners the sum of one pound sterling Provided also that the right of user to be enjoyed by the Corporation shall not except as by this section provided restrict or diminish the rights of the dock commissioners in their property at Newhaven of which the ground on which the proposed new road is to be constructed is a part and particularly without prejudice to the said generality the dock commissioners shall have full power subject to such right of user to make and enjoy or permit others having property adjoining such road to make and enjoy accesses for all sorts of traffic from and to such road on either side at any point or points Provided further that if the Corporation fail to complete the said road and adjuncts and the tramway thereon within the periods in this Order mentioned the said right of user of the said property and the powers by this Order conferred on them for constructing the said new street Work A and Tramway No. 12 shall cease and the dock commissioners may remove from the said ground any of the works executed thereon by the Corporation and shall thereafter possess the said ground to the same extent and effect as if this Order had not been passed but any paving rails standards and electrical equipment so removed shall if so required by the Corporation be delivered to them by the dock commissioners and all expenses incurred by the dock commissioners of and incident to the removal of the said works and the delivery of the materials to the Corporation shall be repaid to the dock commissioners by the Corporation ;

A.D. 1904.

(B) Nothing in this Order contained shall authorise the Corporation to construct the new street Work A and the Tramway No. 12 north of the footpath shown on the deposited plans of the north side of the new street Work A and of the northern footpath of Annfield Road Newhaven without the consent in writing of the dock commissioners;

(c) Nothing in this Order contained shall entitle the Corporation to any claim against the dock commissioners in respect of damage or interruption occasioned to the tramway work by the action of the sea or other natural agency:

(11) Except as otherwise provided in subsection (3) of this section any difference which shall arise between the Corporation and the dock commissioners under this section shall be from time to time determined with or without a formal reference by some one person to be agreed upon in writing between the Corporation and the dock commissioners or failing agreement by some one person to be appointed by the sheriff on the application of either the Corporation or the dock commissioners:

(12) Subject to the provisions of this section nothing in this Order shall restrict or diminish the rights and interests of the dock commissioners in or to the said river and water of Leith or harbour of Leith or any part thereof or the exercise of their powers in connection therewith or affect or interfere with the powers duties and obligations of the dock commissioners in connection with the swing bridge or the portion of the shore of Leith and Commercial Street aforesaid.

For protection of
railway
companies.

23. The following provisions for the protection of the Caledonian and the North British Railway Companies (in this section called "the railway companies") shall unless otherwise agreed between the Corporation and the railway companies respectively apply and have effect (that is to say):—

(1) Before commencing any works or operations under the powers of this Order affecting any railway of the railway companies respectively or affecting any bridge over or under any such railway or the roadway under any such bridge the Corporation shall submit plans and

sections of such works or operations to the railway companies respectively for their approval and the said works and operations shall be constructed and carried on in conformity only with such plans and sections and at the sight and to the reasonable satisfaction of the engineer of the railway companies respectively and such works shall thereafter be maintained and repaired by the Corporation to the reasonable satisfaction of such engineer. Provided that the approval of the railway companies respectively shall not be unreasonably withheld and that it shall be deemed to have been given unless the railway companies respectively signify their disapproval within twenty-eight days after submission of the said plans and sections : A.D. 1904.

- (2) The Corporation shall not in the construction adaptation alteration maintenance or use of the tramways injure alter or interfere with the structure of any bridge over or under any railway of the railway companies or cause any interruption to or interference with the traffic on any such railway except as otherwise specially provided by this Order :
- (3) If in constructing adapting or altering the tramways the Corporation lower the level of any road passing under any railway of the railway companies respectively the Corporation shall if so determined by the arbiter to be appointed as after mentioned underpin or otherwise strengthen the bridge carrying the railway over such road and such underpinning or strengthening shall be executed at the sole cost of the Corporation and at the sight and to the reasonable satisfaction of the engineer of the railway companies respectively and the Corporation shall pay to the railway companies respectively all expenses properly incurred by them in connection with such underpinning or strengthening including the expense of inspectors signalmen watchmen and others and all extra precautions for the safety and working of traffic necessitated by the works or operations of the Corporation :
- (4) If any injury to or interference with any railway of the railway companies respectively or any bridge or works of such companies or any interruption to the traffic on

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 Edw. 7.]
Confirmation Act, 1904.

A.D. 1904.

any such railway shall arise or be occasioned at any time by the works or operations of the Corporation they shall forthwith make good or remove such injury interference or interruption at their own expense or the railway companies respectively may execute the necessary works for that purpose at the expense of the Corporation and the Corporation shall repay to the railway companies respectively all costs and expenses properly incurred by them in so doing and all loss or damage sustained by the railway companies respectively in consequence of such injury interference or interruption :

- (5) Nothing in this Order contained or which may be done in pursuance thereof shall prevent the railway companies respectively from maintaining and repairing and when necessary altering or reconstructing any railway or bridge or other work of the railway companies respectively without interference on the part of the Corporation and without incurring any liability to the Corporation or to any party working or using the tramways for any loss injury damage expense or interruption of traffic which may arise from such maintenance repair alterations or reconstruction and any extra expense which the railway companies respectively may incur in such maintenance repair alteration or reconstruction by reason of the construction or existence of the tramways shall be paid by the Corporation and such extra expense if any shall be determined by the arbiter to be appointed as herein-after mentioned Provided that all such operations shall be executed by the railway companies respectively in such manner as to cause as little interruption or inconvenience as practicable to the traffic on the tramways and the railway companies respectively shall if necessary in consequence of the operations of the railway companies respectively lay at their own expense temporary tramways to maintain the continuity of the tramway traffic and the railway companies respectively shall give twenty-eight days' notice in writing to the Corporation before commencing any such operations and the same so far as interfering with the tramways shall be conducted at the sight and to the reasonable satisfaction of the engineer of the Corporation :

(6) In the event of the telegraphic or telephonic or electrical lines or electrical signal communications of the railway companies respectively or the currents therein being at any time injuriously affected by induction or otherwise by reason of the electric lines of the Corporation the Corporation shall be at the expense of such alterations of the said telegraphic or telephonic or electrical lines or electrical signal communications or remedial works as may be reasonably necessary for the protection of the railway companies respectively and in the event of any difference between the Corporation and the railway companies respectively regarding the alterations or remedial works to be adopted such difference shall be determined as herein-after provided :

A.D. 1904.

(7) At the point where the existing tramways are laid upon or across the crossing on the level of Commercial Street Leith by the goods line of the North British Railway Company leading from North Leith Station to the docks the said tramways shall be so adapted worked used and maintained as not to interfere with the free uninterrupted and safe use by that company of the said level crossing or the working conduct or passage of traffic thereover :

(8) If by reason of the execution of any of the works of the Corporation or the failure of any such works or any act or omission of the Corporation or of their contractors or of any person in the employ of the Corporation or their contractors or otherwise any rails or other work of the North British Railway Company at or near the said crossing be injured or damaged such injury or damage shall forthwith be made good by the Corporation at their own expense or in the event of their failing so to do then the North British Railway Company may make good the same and the reasonable expenses thereof shall be a debt due by the Corporation to the North British Railway Company :

(9) The Corporation shall not stop any tramway cars or other carriages on the said level crossing and shall so use work and maintain the existing tramways as not to interfere with or obstruct the traffic on the said goods line to a greater extent than is reasonably neces-

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 EDW. 7.]
Confirmation Act, 1904.

A.D. 1904.

sary for the proper working of the tramways If any such obstruction or interruption shall be occasioned to the traffic of the North British Railway Company upon or across the said level crossing the Corporation shall pay to the North British Railway Company all damage that may be sustained by them in consequence thereof :

- (10) The Corporation shall not under the powers of this Order purchase take or use any land or property of the railway companies respectively without their consent but the Corporation may in the case of any railway bridge belonging to the railway companies respectively over any road or street attach to the under side of any such bridge such brackets wires and apparatus as may be required for the working of the tramways by mechanical power Provided always that such attachments shall only be made if and where they can be made without injury to such bridge and that all such attachments shall be made and protected to the reasonable satisfaction of the engineer of the railway companies respectively :
- (11) If any difference shall arise between the Corporation and the railway companies respectively or their engineer as to the meaning of this section or as to any plans and sections or as to any work or the method of executing the same or as to any expenses referred to in this section the same shall be determined by an arbiter to be agreed upon between the Corporation and the railway companies respectively or failing agreement to be nominated by the Board of Trade on the application of any of the parties.

Shelters or
waiting
rooms.

24. The Corporation may erect and maintain sheds or shelters or waiting rooms for the accommodation of passengers and tramway servants of the Corporation in any road within the burgh in which any of the tramways is or will be situate.

Adaptation
of existing
tramways
and con-
struction of
electric
works.

25.—(1) The Corporation may adapt the existing tramways for working by mechanical power either in substitution for or in addition to any motive power now or hereafter in use on such tramways.

(2) The Corporation may for the purpose of working any of the tramways by mechanical power construct lay down erect

[4 EDW. 7.] *Leith Corporation Tramways Order* [Ch. cxxxix.]
Confirmation Act, 1904.

maintain renew and repair on in under or over the surface of any street or road (including the footways thereof) footpath bridge or public place in which any of the tramways will be situate or in under or over the bed and foreshore of the water of Leith such posts brackets and overhead or other electric conductors wires tubes mains plates electric cables and apparatus and may make and maintain in on or under any such surface such openings and ways as may be necessary or convenient either for the working of the tramways or for providing access to or forming connections with any generating station of the Corporation or with any depôt car shed engine machinery or apparatus of the Corporation or for the purpose of any junction with any other tramway and may for those purposes subject to the restrictions and provisions contained in Part II of the Tramways Act 1870 open and break up any such street or road (including the footways thereof) footpath bridge or public place and raise alter remove replace and interfere with any lamp posts letter boxes sewers drains water or gas pipes tubes conductors telegraphic telephonic and electric wires posts and apparatus therein or thereunder :

A.D. 1904.

Provided that the Corporation shall not alter remove or interfere with any post office letter box except with the consent in writing of the Postmaster-General and that all posts erected by the Corporation under the powers of this Order in any street or road (including the footways thereof) bridge or public place above the level of the surface thereof shall be of such design and shall be placed in such position as shall be reasonably approved by the local authority for any district beyond the burgh in which such posts are erected.

(3) Nothing in this section shall authorise any interference with any electric lines or works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with such provisions.

26. The provisions of sections 26 to 33 and 41 of the Tramways Act 1870 (except so much of section 28 as relates to the repair of the road between and on each side of the rails of a tramway) shall apply as if all posts tubes pipes wires and other apparatus used or to be used by the Corporation for the purposes of mechanical power were parts of the tramways.

Apparatus used for mechanical power to be deemed part of tramways.

27. The Corporation may with the consent of the owner of any building or bridge attach to that building or bridge such

Attachment of brackets &c. to buildings &c.

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 EDW. 7.]
Confirmation Act, 1904.

A.D. 1904. brackets wires and apparatus as may be required for the working of the tramways by mechanical power :

Provided that—

- (1) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to the sheriff who shall have power having regard to the character of the building or bridge and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as he may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid ;
- (2) Any consent of an owner and any order of the sheriff under this section shall not have effect after that owner ceases to be in possession of the building or bridge but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the sheriff shall have the same powers as under proviso (1) ;
- (3) The owner may require the Corporation to temporarily remove or alter the position of the attachments where necessary during any reconstruction or repair of the building or bridge.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rent shall be deemed to be the owner.

Provisions
as to motive
power.

28. The carriages used on the tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say) :—

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade :
- (2) The Board of Trade shall make regulations (in this Order referred to as “the Board of Trade regulations”) for securing to the public all reasonable protection against

danger arising from the use under this Order of mechanical power on the tramways and for regulating the use of electrical power : A.D. 1904.

(3) The Corporation or their lessees or any company or person using any mechanical power on the tramways contrary to the provisions of this Order or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof :

(4) The Board of Trade if they are of opinion—

(A) That the Corporation or their lessees or any company or person have or has made default in complying with the provisions of this Order or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered ; or

(B) That the use of mechanical power as authorised under this Order is a danger to the passengers or the public ;

may by order either direct the Corporation or their lessees or such company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Corporation or their lessees or such company or person shall comply with every such order In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

29. The following provisions shall apply to the use of electrical power under this Order unless such power is entirely contained in and carried along with the carriages :—

Special provisions as to use of electrical power.

(1) The Corporation shall employ either insulated returns or uninsulated metallic returns of low resistance :

(2) The Corporation shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 Edw. 7.]
Confirmation Act, 1904.

A.D. 1904.

injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :

- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :
- (4) The Corporation shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Corporation either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the commencement of this Order the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :

(6) If any difference arises between the Corporation and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbiter to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbiter as the case may be: A.D. 1904.

(7) The expression "Corporation" in this section shall include lessees licensees and any person owning working or running carriages or trucks over any tramway of the Corporation.

30. Notwithstanding anything in this Order contained if any of the works authorised to be executed by this Order involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration. Alteration of telegraph lines of Postmaster-General.

31. In the event of any tramways of the Corporation being worked by electricity the following provisions shall have effect:— For protection of post office telegraph lines.

(1) The Corporation shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Corporation as to compliance with this subsection shall be determined by arbitration:

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Corporation of their electric lines and works or by the working of the undertaking of the Corporation the Corporation shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection:

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 Edw. 7.]
Confirmation Act, 1904.

A.D. 1904.

- (3) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Corporation or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Corporation and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work. Any difference which arises between the Postmaster-General and the Corporation as to any requirement so made shall be determined by arbitration :
- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Corporation's works or to the working of the undertaking the engineer-in-chief of the post office or any person appointed in writing by him may at all times when electrical energy is being generated by the Corporation enter any of the Corporation's works for the purpose of inspecting the Corporation's plant and the working of the same and the Corporation shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Corporation pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Corporation or their agents the Corporation shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not

exceeding fifty pounds for every day on which such interruption continues : A.D. 1904.

- (6) Provided that nothing in this section shall subject the Corporation or their agents to a fine under this section if they satisfy the Court having cognisance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbiter appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Corporation or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Corporation by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression "the Corporation" includes their lessees and any persons owning working or running carriages on any of the tramways.

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 Edw. 7.]
Confirmation Act, 1904.

A.D. 1904.

Byelaws.

32. Subject to the provisions of this Order the Board of Trade may make byelaws with regard to any of the tramways upon which mechanical power may be used for all or any of the following purposes (that is to say):—

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages:

For regulating the emission of smoke or steam from engines used on the tramways:

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety:

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages:

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Order shall be liable to a penalty not exceeding forty shillings.

Power to
Corporation
to work
tramways.

33. Notwithstanding anything in the Tramways Act 1870 to the contrary the Corporation may place and run carriages and trucks on and may maintain work and use the tramways and may demand and take tolls fares and charges in respect of the tramways and in respect of the use of such carriages and trucks and may provide such stables buildings carriages trucks harness engines machinery apparatus horses steam cable electric and other plant appliances and conveniences as may be requisite or expedient for the convenient working or use of the tramways by animal or mechanical power and may sell exchange and dispose of such of the before-mentioned articles and things as may be no longer required for such working or use and notwithstanding anything contained in the Leith Corporation Electric Lighting Order 1897 the Corporation may supply and use electrical energy generated at any station of the Corporation for the purpose of working any of

[4 EDW. 7.] *Leith Corporation Tramways Order* [Ch. cxxxix.]
Confirmation Act, 1904.

the tramways whether situate within or beyond the area of supply under that Order. A.D. 1904.

34. Notwithstanding anything in this Order contained the Corporation shall not except with the consent of the company interfere with any of the existing tramways until the same shall have been acquired by the Corporation. Corporation not to interfere with existing tramways until acquired.

35. From and after the acquisition by the Corporation of the existing tramways the provisions of the Acts specified in the First Schedule to this Order shall cease to apply to the existing tramways but nothing in this section shall relieve the Edinburgh Corporation from any obligation imposed upon them by section 4 of the Edinburgh Tramways Act 1874 and the Edinburgh Corporation Act 1897 with regard to a service of omnibuses to and from Trinity. Acts specified in First Schedule to cease to apply to existing tramways after acquisition by Corporation.

36. The tramways may be used for the carriage of passengers passengers' luggage and parcels and for the purposes of the Corporation as a local authority but not otherwise of minerals materials and goods. Traffic upon tramways.

37.—(1) The Corporation may demand and take for every passenger travelling upon the tramways or any part or parts thereof including every expense incidental to such conveyance a fare not exceeding one penny per mile and in computing the said fare a fraction of a mile shall be deemed a mile but in no case shall the Corporation be bound to charge a less sum than one penny. Passengers' fares and stages.

(2) The Corporation may appoint stages upon the tramways each of not less than half a mile in length and may demand and take for every passenger travelling upon the tramways including every expense incidental to the conveyance of such passenger any fare not exceeding one penny for each two stages (or portion of that distance) travelled and for this purpose the fraction of a stage shall be deemed a stage.

38. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof Provided that such luggage be carried by hand and at the responsibility of the passenger and shall not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers. Passengers' luggage.

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 EDW. 7.]
Confirmation Act, 1904.

A.D. 1904.
Rates for
parcels.

39. The Corporation may demand and take in respect of any parcels conveyed by them on the tramways including every expense incidental to the conveyance any rates and charges not exceeding the following (that is to say):—

For any parcel not exceeding seven pounds in weight three-pence:

For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight fivepence:

For any parcel exceeding fourteen pounds and not exceeding twenty-eight pounds in weight sevenpence:

For any parcel exceeding twenty-eight pounds and not exceeding fifty-six pounds in weight ninepence.

Corporation
not to carry
minerals &c.

40. The Corporation shall not carry on the tramways passengers' luggage or parcels exceeding the weight in this Order mentioned nor any animals nor except for their own purposes as a local authority any minerals materials or goods.

Cheap fares
for labouring
classes.

41.—(1) The Corporation at all times after the acquisition of the existing tramways shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way every morning and every evening (Sundays New Year's Day and general holidays always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance On Saturdays the Corporation in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Corporation to provide such service as may appear to the Board to be reasonable.

(3) The Corporation shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

As to fares
on Sundays
or holidays.

42. The Corporation shall not take or demand on Sundays or on any general holiday any higher fares or charges than those levied by them on ordinary week days.

43. If at any time after three years from the acquisition of the existing tramways by the Corporation or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by the local authority of any district in which the tramways or such portion are or is wholly or partly situate or by twenty inhabitant ratepayers of that district or by the Corporation that under the circumstances then existing all or any of the fares or other charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if the referee reports that it has been proved to his satisfaction that all or any of the fares or charges should be revised the said Board may subject to the maximum fares and charges authorised by this Order by order in writing alter modify reduce or increase all or any of the fares or charges to be taken in respect of the tramways or on any portion thereof and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section.

A.D. 1904.

Periodical
revision of
rates and
charges.

44. The tolls fares and charges by this Order authorised shall be paid to such persons and at such places upon or near to the tramways and in such manner and under such regulations as the persons entitled to demand and take such tolls fares and charges may by notice to be annexed to the list of tolls fares and charges appoint.

Payment of
tolls &c.

45. The Corporation on the one hand and the Edinburgh Corporation the Edinburgh Company the Commissioners for the Harbour and Docks of Leith or any road authority on the other hand may subject to the provisions of this Order enter into and carry into effect agreements with respect to the widening of any street road bridge or public place in which any of the tramways is or are laid or intended to be laid and the contribution by any of the contracting parties to the expense thereof the alteration of the widths or levels of any such street road bridge or public place or the footways or footpaths thereof or any quays piers or places adjacent thereto the forming laying down maintaining renewing repairing working and using of the tramways by the Corporation and the rails plates sleepers posts wires apparatus and works connected therewith the erection of waiting rooms for passengers

Agreements
with Edin-
burgh Cor-
poration and
other bodies.

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 Edw. 7.]
Confirmation Act, 1904.

A.D. 1904. and the acquisition of any lands required by the Corporation for the purposes of this Order and for facilitating the passage of carriages and traffic over and along any roads or streets in or along which any of the tramways is or are laid or intended to be laid or any part thereof.

Agreements
as to work-
ing &c.

46. The Corporation on the one hand and the Edinburgh Corporation the Edinburgh Company or any local authority company or person owning or working any tramways or light railways which can be worked with the tramways on the other hand may enter into and carry into effect agreements with respect to all or any of the following matters (that is to say) :—

The working running over use management and maintenance by the contracting parties of all or any of their respective tramways or light railways and the works connected and used therewith or any part or parts thereof respectively :

The making of all necessary junctions :

The supply and maintenance under any agreement for all or any of the respective tramways or light railways of the contracting parties being worked and used by the other or others of them of rolling stock plant machinery and electrical energy necessary for the purposes and during the continuance of such agreement :

The employment appointment and removal of officers and servants :

The payments to be made and the conditions to be performed in respect of the matters aforesaid :

The interchange accommodation conveyance transmission and delivery of traffic coming from or destined for the respective undertakings of the contracting parties :

The division and apportionment of the revenue arising from such traffic and the payment of any fixed or contingent rent :

And in accordance with the terms of any such agreement and to the extent provided thereby the Corporation or the Edinburgh Corporation the Edinburgh Company or such local authority company or person as the case may be may work run over use manage and maintain the tramways or light railways the subject of such agreement and shall have and may exercise in relation thereto all such and the like powers rights authorities and privileges as

[4 EDW. 7.] *Leith Corporation Tramways Order* [Ch. cxxxix.]
Confirmation Act, 1904.

are for the time being vested in or exerciseable by the owners or lessees thereof: A.D. 1904.

Provided that any such agreement with respect to the supply of electrical energy shall be subject to the approval of the Board of Trade and that any such supply under this section to the Corporation and any works constructed for that purpose shall be subject to all provisions for the protection of the Postmaster-General and of his rights in respect thereof which are contained in the Act or Order by which the supplying local authority company or person is authorised to generate or supply electricity for the purposes of its own undertaking.

47. Notwithstanding anything contained in section 19 (Local authority may lease or take tolls) of the Tramways Act 1870 the Corporation may subject to the approval of the Board of Trade lease to any local authority company or person the whole or any part of the existing and after construction of the proposed tramways or the right of use of the same and the right of levying tolls rates fares and charges in respect thereof for any period or periods not exceeding forty-two years in the whole upon such terms and conditions as may be agreed upon between the Corporation and such local authority company or person. Power to lease tramways.

48. The Corporation may provide and run within the burgh by mechanical or animal power omnibuses in connection with any of the tramways when the running of carriages thereon is impracticable or during or pending the reconstruction alteration or repair thereof or in prolongation of any tramway route the extensions of which may for the time being be contemplated by the Corporation and may demand and take tolls and fares for the use of such omnibuses: Corporation may work omnibuses.

Provided always that the Corporation shall not use electrical energy as the motive power on such omnibuses unless the electrical energy is entirely contained in and carried along with the omnibuses or any engine or other vehicle used for moving the same in such a manner that no magnetic or other influence is created which is likely to injuriously affect telegraphic communication by means of any telegraphs of the Postmaster-General.

49. The regulations authorised by the Tramways Act 1870 to be made by the promoters of any tramway and their lessees may with respect to any tramways or portions of tramways belonging to or worked by the Corporation be made by the Corporation alone. Regulations by Corporation.

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 EDW. 7.]
Confirmation Act, 1904.

A.D. 1904.
 Power to acquire patent rights.

50. For the purpose of using mechanical power it shall be lawful for the Corporation to acquire hold and exercise patent and other rights or licenses (not being exclusive) relating to motive power or otherwise.

Recovery of penalties.

51. Any penalty under this Order or under any byelaws or regulations made under this Order may be recovered in manner provided by the Summary Jurisdiction (Scotland) Acts.

Penalty for malicious damage.

52. If any person wilfully does or causes to be done with respect to any apparatus used for or in connection with the working of any tramway or light railway owned leased or worked by the Corporation anything which is calculated to obstruct or interfere with the working of such tramway or light railway or to cause injury to any person he shall (without prejudice to any proceedings by way of interdict or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence or of any offence under section 50 (Penalties for wilful injury or obstruction to tramways &c.) of the Tramways Act 1870 with respect to any such tramway or light railway shall be liable to a penalty not exceeding twenty pounds and the Corporation or their officers or servants may remove obstructions caused by any breakdown or illegal act or cause from any such tramway or light railway so as to free the traffic thereon from any such obstruction.

Amendment of Tramways Act 1870 as to byelaws by local authority.

53. The provisions of the Tramways Act 1870 relating to the making of byelaws by the Corporation with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the Corporation to make any byelaws sanctioning a higher rate of speed than that authorised by this Order or by the Board of Trade regulations at which engines are to be driven or propelled on the tramways under the authority of this Order Provided that carriages may be driven or propelled on the tramways at such speed not exceeding fifteen miles an hour as the Board of Trade may prescribe.

Orders &c. of Board of Trade.

54. All orders regulations and byelaws made by the Board of Trade under the authority of this Order shall be signed by a secretary or an assistant secretary of the Board.

Railway carriages not to be used on tramways.

55. No carriages or trucks adapted for use upon railways shall be used upon the tramways.

56. Where the consent or approval of any local or road authority is by this Order required before the exercise of any powers by the Corporation such consent or approval shall not be unreasonably withheld and if any difference arises as to whether any consent or approval is unreasonably withheld that difference shall be referred to an arbiter to be appointed by the Board of Trade.

A.D. 1904.

Consents of
local or road
authority.

57. With respect to notices under this Order and to the delivery thereof by or to the Corporation the following provisions shall subject to the provisions of this Order have effect (that is to say) :—

Form and
delivery of
notices.

(1) Every notice shall be in writing and shall be signed by the town clerk if given by the Corporation and by their clerk or secretary if given by any company or local authority or road authority :

(2) Any notice to be delivered by or to the Corporation to or by any local authority or any road authority or other body or company may be delivered by being left at the principal office of that authority body or company or at the Council Chambers in the burgh as the case may be or by being sent by post addressed to their respective clerk or secretary at their principal office or to the town clerk at his office.

58. The Conveyance of Mails Act 1893 shall from and after the acquisition by the Corporation of the existing tramways extend and apply to such tramways as if the same had been authorised by an Act of Parliament passed after the first day of January one thousand eight hundred and ninety-three and to the Corporation as the body or person owning or working such tramways.

Conveyance
of Mails Act
1893 to apply
to existing
tramways.

59. Nothing in this Order contained shall exempt the Corporation or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised by this Order.

Provision as
to general
Tramway
Acts.

PART III.

STREET WORKS.

60. Subject to the provisions of this Order the Corporation may make and execute the street works herein-after described in the lines and within the limits of deviation and according to the

Power to
make street
works.

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 EDW. 7.]
Confirmation Act, 1904.

A.D. 1904. levels shown on the deposited plans and sections together with all necessary and proper works improvements junctions connections approaches and conveniences connected therewith or incidental thereto and may enter upon open break up and interfere with such streets or roads as may be necessary for the like purpose.

The street works herein-before referred to and authorised by this Order will be situate wholly in the burgh and are—

Work A.—A new street 50 feet or thereabouts in width between Saint Andrew Square (Newhaven) and the street known as Annfield The centre line thereof commencing at the north-east corner of Saint Andrew Square opposite the eastern termination of Pier Place and terminating in Annfield aforesaid at the point herein-before described as the termination of Tramway No. 12 :

Work B.—A rounding and improvement of the south-east corner of Saint Andrew Square (Newhaven) between points respectively 26 feet or thereabouts east and 25 feet or thereabouts north from the said corner :

Work C.—A rounding and improvement of the north-west corner at the junction of Iona Street with Easter Road between points respectively 60 feet or thereabouts west and 60 feet or thereabouts north from the said corner.

Power to deviate.

61. In executing the street works herein-before described and authorised by this Order the Corporation may deviate laterally to any extent within the limits of deviation defined on the deposited plans and they may deviate vertically from the levels thereof shown on the deposited sections to any extent not exceeding two feet.

Period for completion of street works.

62. If the street works herein-before described and shown on the deposited plans and authorised by this Order are not except as otherwise in this Order provided completed within five years from the commencement of this Order then on the expiration of that period the powers by this Order granted to the Corporation for executing the said works not so completed or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Power to make subsidiary works.

63. Subject to the provisions of this Order and within the limits of deviation shown on the deposited plans the Corporation in connection with the street works by this Order authorised and for the purposes thereof may make junctions and communications

with any existing streets or roads which may be interfered with or be intercepted by or be contiguous to such works and may make diversions widenings or alterations of lines or levels of any existing streets or roads for the purpose of connecting the same with such works or of crossing under or over the same. A.D. 1904.

PART IV.

LANDS.

64. Subject to the provisions of this Order the Corporation may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for or in connection with the tramways and street works respectively by this Order authorised. Lands for tramways and street works.

65. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to the sheriff of the Lothians and Peebles for the correction thereof and if it appear to the sheriff that the omission misstatement or wrong description arose from mistake he shall certify the same accordingly and shall in such certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the principal sheriff clerk for the said county and a duplicate thereof shall also be deposited with the town clerk of the burgh and such certificate and duplicate respectively shall be kept by such principal sheriff clerk and town clerk respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate. Correction of errors &c. in deposited plans and book of reference.

66. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Order shall cease after the expiration of three years from the commencement of this Order. Period for compulsory purchase of lands.

67. The Corporation shall not under the powers of this Order purchase or acquire in any district within the meaning of the Public Health (Scotland) Act 1897 ten or more houses which on the fifteenth day of December last were occupied either wholly Restriction on taking houses of labouring class.

A.D. 1904. or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the Corporation acquire or appropriate any house or houses for the purposes of this Order in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Persons under disability may grant servitudes &c.

68. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Corporation any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands feu duties ground annuals and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Purchase of lands by agreement.

69. In addition to the other lands which the Corporation are by this Order authorised to purchase and acquire they may purchase take on lease or acquire by agreement for the purpose of the tramways any lands not exceeding ten acres and they may on such lands and on any other lands purchased or acquired under the authority of this Order erect or construct and hold carriage and engine houses shelters waiting rooms stables sheds depôts yards offices buildings stations sidings works and other conveniences

but nothing in this Order shall exonerate the Corporation from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any land purchased or acquired by agreement under the powers of this section or authorise the Corporation to construct any station for generating electrical energy. A.D. 1904.

70. Notwithstanding anything with respect to the sale of superfluous lands in the Lands Clauses Consolidation (Scotland) Act 1845 or in any other Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit or may feu or lease and also either before or after making any feu or lease thereof absolutely sell and dispose of to such persons and in such manner and for such consideration as the Corporation think fit the lands houses and property acquired by them from the company which they do not require for the purposes of their tramways and on the feu lease or sale by the Corporation of any such lands houses and property they may reserve to themselves all or any rights easements or servitudes belonging thereto and may make the feu lease or sale subject to such reservation accordingly and may also make any such feu lease or sale subject to such other reservations special conditions restrictions and provisions as they think fit Provided that the proceeds of any such sale shall be applied towards any one or more of the purposes authorised by this Order to which capital is properly applicable. Power to retain sell &c. lands.

71. The Corporation may with the approval of the Secretary for Scotland appropriate and use for any of the purposes of this Order any lands for the time being vested in them and not required for the purposes for which the same were acquired but nothing in this Order shall authorise the Corporation to create or permit any nuisance on any such lands. Corporation may use their own lands for purposes of Order.

PART V.

FINANCIAL.

72. The Corporation shall once in each year after the first year's working by the Corporation of any of the tramways cause to be laid before them a statement and balance sheet of the tramway accounts including the reserve and suspense accounts (if any) for the preceding year and an estimate of the revenue to be derived for the ensuing year from the working and use of the tramways Statement and balance sheet and estimates to be laid before Corporation.

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 Edw. 7.]
Confirmation Act, 1904.

A.D. 1904. — and carriages and trucks thereon and also an estimate of the sums required to meet for such year the expenses of working management maintenance of lines works machinery and rolling stock repairs renewals materials wages taxes and other outgoings and charges and also the interest on borrowed money and the payment of the sums required to be annually made to the sinking fund and the loans instalments herein-after mentioned and the Corporation shall thereupon fix the tolls fares and charges to be levied by them for the use of the tramways and of carriages and trucks used or propelled thereon for the said year then ensuing not exceeding the tolls fares and charges specified in this Order so that the revenue shall as nearly as possible meet the expenditure as before specified for each year. Provided that the Corporation may during the year vary the tolls fares and charges so fixed if in their opinion such variation will not increase or diminish the said revenue above or below the amount estimated as aforesaid to be derived from the working and use of the tramways and of the carriages and trucks thereon. Provided further that if in any year the revenue exceeds such expenditure the Corporation shall deal with the surplus in manner provided by subsection (4) of the section of this Order of which the marginal note is "Application of tramway revenue" and that should there be a deficiency in any year it shall be provided for in the estimate for the following year by drawing from reserve account or varying the tolls fares and charges or reducing working expenses or be carried to a suspense account and reduced gradually over a period of years not exceeding five.

Application]
of tramway
revenue.

73. The tramway revenue shall subject to the provisions of this Order be applied—

- (1) In maintaining the tramways and so much of the streets in which the same are laid as is required to be maintained and kept in good repair and condition by the promoters of tramways by section 28 of the Tramways Act 1870 :
- (2) In paying all working and other expenses properly chargeable to revenue :
- (3) In providing the interest on any moneys raised or borrowed by the Corporation for tramway purposes under the powers of this Order together with the amount necessary to be paid for loans instalments or into a sinking fund to provide for the repayment of the moneys so raised or borrowed :

- (4) The surplus after providing for such payments as aforesaid A.D. 1904.
may be transferred by the Corporation if they think
fit to a reserve fund for the purposes of the tramway
undertaking or into a suspense account and may be
invested by the Corporation in any of the securities
in which the sums by this Order directed to be set
apart as a sinking fund are by this Order directed to
be invested and such surplus and the proceeds of any
investment and the interest and produce of the same
may be applied in extending and developing the tram-
way undertaking or providing any loans instalments
or in increasing the amount required to be paid into
any sinking fund or redemption fund in respect of
money borrowed by the Corporation for tramway pur-
poses but subject as herein-after mentioned no part of
the surplus shall be paid to the credit of any rate
until a reserve fund of at least ten per centum on
the capital expended for tramway purposes shall have
been provided Provided that if and whenever there
shall be remaining in the hands of the Corporation
any surplus on account of tramway revenue after
payment of the charges and making the transfers and
appropriations herein-before provided for such surplus
shall be paid to the credit of the police rate.

74. The Corporation shall keep a separate account of all
moneys expended by them for the purpose of the street works
by this Order authorised and the purchase of lands houses and
property therefor and the expense thereof or so much of such
expense as the Corporation may think reasonable and proper
shall (subject to the approval of the Secretary for Scotland) be
a charge against the general improvement rate authorised to be
levied by the Police Acts in the same manner as if such expense
had been incurred under those Acts and the remainder of such
expense shall be charged against the tramway undertaking and
be paid out of the funds by this Order authorised to be borrowed
for the purposes of that undertaking The Corporation shall also
keep a separate account of all moneys expended by them for or
upon the tramway undertaking.

Separate ac-
counts for
street works
and tram-
ways.

75. The Corporation in addition to any money which they
may have borrowed independently of this Order or which they
are or may be authorised to borrow under the provisions of any

Power to
borrow.

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 Edw. 7.]
Confirmation Act, 1904.

A.D. 1904. — public general Act may from time to time borrow at interest on the credit and security of the tramway revenue and of the police rate such sums of money not exceeding in the whole the sum of two hundred and twenty-five thousand pounds as shall be necessary for the purposes of this Order including so much of the expense of the street works as shall not be charged against the general improvement rate as aforesaid and for paying the costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto and if after having borrowed the said sums or any part thereof the Corporation pay off the same otherwise than by means of the loans instalments or of the sinking fund herein-after provided they may again borrow the amount so paid off and so from time to time.

Bonds for
borrowed
money.

76. All bonds to be granted for money to be borrowed for tramway purposes under the authority of this Order shall be executed in accordance with the provisions of section 9 of the Town Councils (Scotland) Act 1900 and may be in the form contained in the Third Schedule to this Order or to the like effect and the Corporation may grant bonds accordingly for the moneys so to be borrowed and may assign the tramway revenue and the police rate in security thereof and of the interest thereon and such bonds may be assigned in the form provided in section 377 of the Burgh Police (Scotland) Act 1892.

Interest
warrants.

77. It shall be lawful for the Corporation to issue along with any such bond and during the period of any postponement of the term of payment thereof interest warrants signed by the chamberlain of the burgh in the form contained in the Fourth Schedule to this Order or to the like effect for the periodical payment of the interest to become due on the principal sum thereby secured during the period for which such bond is intended to subsist and the delivery to the Corporation or to any person on their behalf of any such interest warrant shall be a valid and sufficient discharge to the Corporation for the interest in respect of which the same was issued.

Temporary
loans.

78. For the purpose of providing temporarily for expenses under this Order during any financial year it shall be lawful for the Corporation to borrow by way of temporary loan or overdraft from any bank or on temporary loan on deposit receipt from any person on the security of the tramway revenue and of the police rate such sums as they may from time to time resolve and any amount so

borrowed shall form a charge upon the said revenue and rate *pari passu* with any bond affecting the same and it shall further be lawful for the Corporation to utilise for providing temporarily for any such expenses any sinking funds which they may have on hand crediting the said sinking funds with such fair rate of interest not being less than three per centum per annum as they may resolve:

A.D. 1904.
—

Provided that—

- (1) Every sum borrowed under the provisions of this section shall be repaid not later than six months after the expiry of the financial year in which it is borrowed Provided that if any such sum is repaid by means of a loan whether on bond or otherwise such loan shall be deemed to have been incurred at the date at which such sum was first temporarily borrowed and all provisions for the repayment of such loan shall apply accordingly;
- (2) No sum of money shall be borrowed under this section until an estimate of the amount required shall have been laid before the Corporation and until the expiration of three weeks after published notice shall have been given by the Corporation of the amount in some newspaper in ordinary circulation within the burgh and the proposal to borrow shall be disposed of at the first meeting of the Corporation after the expiry of the said three weeks.

79. There shall be kept at the office of the town clerk of the burgh a register of the bonds for money borrowed for tramway purposes and within fourteen days after the date thereof an entry shall be made in the register of the number and the amount and date thereof and of the names and description of the parties thereto as stated in the deed and also the interest payable on the same Such register shall be open to public inspection during office hours at the said office without fee or reward and any clerk or other person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds Before such bond is delivered to the creditor a certificate of such entry shall be endorsed on such bond and signed by the town clerk and all assignments of such bond shall be notified to the said town clerk who shall enter in the register aforesaid the date of the assignation the names of the parties thereto the number of the

Register of
bonds.

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 EDW. 7.]
Confirmation Act, 1904.

A.D. 1904. — bond and the date it was notified or intimated and a certificate of such entry shall be endorsed on the said bond and signed by the chamberlain of the burgh and the town clerk and the said bond being so certified the assignee his executors and assignees shall thereafter be entitled to the benefit of such bond in terms of such assignation.

Rates to include interest sinking fund &c.

80. The Corporation shall subject to the provisions of this Order annually include in and as part of the police rate such sums as shall be necessary to meet any deficiency in the tramway revenue for paying the interest of any money borrowed by them for tramway purposes under the authority of this Order and the sums to be set apart annually as a sinking fund in respect thereof or for loans instalments as herein-after in this Order provided.

Present bonds and securities by Corporation not to be prejudiced.

81. Nothing herein contained shall prejudice or affect any bonds or securities which may have been granted by the Corporation for money borrowed by them previous to the commencement of this Order but the same shall as to the rates funds and property comprised therein respectively have priority over all money borrowed under this Order.

Protection of lenders from inquiry.

82. Any person lending or paying money under this Order to the Corporation shall not be bound to inquire as to the observance by them of any provisions of this Order or be bound to see to the application or be answerable for any loss or non-application of such money or of any part thereof.

Application of money borrowed.

83. All money borrowed by the Corporation under the authority of this Order shall be applied to the purposes thereof and to no other purpose whatsoever Provided always that no such borrowed money shall be applied to any purpose for which capital is not properly applicable.

Sinking fund.

84.—(1) The Corporation shall except as herein-after provided from and out of tramway revenue and if necessary also out of the police rate set apart annually not later than and after the expiration of two years from the commencement of this Order as a sinking fund such sums as shall be calculated to be sufficient to pay off all the money borrowed under the authority of this Order (excepting the costs charges and expenses of this Order) within thirty years from the respective dates of borrowing and all money borrowed for paying such costs charges and expenses within five years from the commencement of this Order.

[4 EDW. 7.] *Leith Corporation Tramways Order* [Ch. cxxxix.]
Confirmation Act, 1904.

(2) The said sinking fund and the income arising therefrom shall be invested in any security in which trustees in Scotland are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money other than securities of the Corporation or by way of deposit in any bank in Scotland incorporated by Act of Parliament or by royal charter or in or on any mortgage bond debenture debenture stock corporation stock annuity rentcharge rent or other security authorised by or under any Act of Parliament passed or to be passed of any municipal corporation in Great Britain except the Corporation such securities not being securities transferable by delivery and shall be applied at such time as the Corporation shall see fit in or towards the repayment of moneys borrowed under the authority of this Order in such order and manner as they deem proper. The Corporation may in lieu of investing such yearly income as aforesaid apply the same in payment of the annual instalments of the moneys borrowed as aforesaid and remaining due by them.

A.D. 1904.

Investment and application of sinking fund and income thereof.

(3) If the Corporation out of the proceeds of the sale or disposition of lands or out of other moneys received by them on capital account for tramway purposes other than borrowed moneys repay any principal moneys borrowed under the powers of this Order the payments to the sinking fund established under the provisions of this Order for the repayment of such principal moneys may be reduced by a proportionate amount.

Sinking fund may be adjusted in certain events.

85. The Corporation may if they see fit in lieu of providing a sinking fund in accordance with the provisions of this Order for the repayment of any moneys borrowed under this Order pay off the same by such equal yearly or half-yearly instalments (in this Order called "loans instalments") of principal or of principal and interest combined as shall be sufficient to pay off all moneys so borrowed (excepting the costs charges and expenses of this Order) within thirty years from the respective dates of borrowing and all moneys borrowed for paying such costs charges and expenses within five years from the commencement of this Order.

Alternative provisions for repayment of moneys borrowed.

86. The Corporation shall within two months after the expiration of each year during which any sum is by this Order required to be set apart for a sinking fund transmit to the Secretary for Scotland a return in such form as may be prescribed by the Secretary for Scotland and verified by statutory declaration if so required by him showing the amount which has been so set apart in respect of that year and the description of the securities upon

Annual return to Secretary for Scotland with respect to sinking fund.

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 EDW. 7.]
Confirmation Act, 1904.

A.D. 1904. — which the same has been invested and also showing the purposes to which any portion of such sinking fund and the interest or income thereof have been applied during the same period and the total amount remaining invested at the end of the year and in the event of any default in making such return the Corporation shall be liable to a penalty not exceeding twenty pounds which shall be recoverable by the Secretary for Scotland as a debt to the Crown is recoverable. If it appear to the Secretary for Scotland by any such return or otherwise that the Corporation have failed to set apart the sum required by this Order to be set apart for the sinking fund or have applied any portion of the moneys set apart for that fund or any interest or income thereof to any purposes other than those authorised by this Order the Secretary for Scotland may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part of the sinking fund and such order shall be enforceable by decree of either Division of the inner house of the Court of Session in Scotland pronounced in a summary application presented for that purpose.

Bonds to be
 lien on train
 way revenue
 and police
 rate.

87. The bonds to be granted for money borrowed for tramway purposes under this Order shall until repayment thereof form a lien not only on the tramway revenue but also on the police rate and shall entitle the creditor under the same to recover the contents thereof from the Corporation and their officers out of such rate without prejudice to the remedy provided in the next following section.

For appoint-
 ment of judi-
 cial factor.

88. In the event of any interest on any bond for money borrowed for tramway purposes or of any principal moneys to the amount of five thousand pounds borrowed on any such bond not being paid within one month after such payment shall have become due and demand thereof made in writing the holder or holders of any such bond to whom such interest or principal moneys are so payable may render his or their security effectual by the appointment from time to time of a judicial factor and the application for such appointment shall be made by summary petition to the Court of Session or in time of vacation to the Lord Ordinary on the Bills which appointment shall be made accordingly unless previously to such application being advised the amount of such interest or principal moneys as the case may be with interest and expenses shall have been paid or unless the said Court or Lord Ordinary as the case may be shall be satisfied that consignation thereof should

under the circumstances be accepted in lieu of payment and such consignment be made accordingly and the interlocutor making such appointment shall not be subject to review or appeal. A.D. 1904.

89. The judicial factor so appointed on finding security in common form shall exercise all the powers conferred by this Order upon the Corporation for managing and carrying on the tramway undertaking and after defraying the expense of such application and management the said judicial factor shall from time to time apply and pay over the balance of the sums received by him to the several parties entitled to payment therefrom and such judicial factory shall continue until all arrears of interest or principal sums with interest thereon as the case may be with expenses are paid and satisfied when the same shall be recalled. Powers of judicial factor.

90. Nothing herein contained shall authorise the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty. Saving rights of Crown.

91. The Corporation shall not under the powers of this Order construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Corporation shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade Works below high-water mark not to be commenced without consent of Board of Trade.

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 Edw. 7.]
Confirmation Act, 1904.

A.D. 1904. — may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Corporation and the amount of such costs and charges shall be a debt due from the Corporation to the Crown and shall be recoverable as a Crown debt or summarily.

Cables &c.
across or
under tidal
waters.

92. Notwithstanding anything contained in this Order any cables pipes or wires to be laid or placed by the Corporation under or across any tidal water shall be laid or placed at such depth under or such height over the tidal water as the Board of Trade may require.

Costs of
Order.

93. All the costs charges and expenses of and incident to preparing for obtaining and confirmation of this Order or otherwise in relation thereto shall be paid by the Corporation out of the police rate or out of the moneys to be borrowed by them under the authority of this Order.

The SCHEDULES referred to in the foregoing Order.

THE FIRST SCHEDULE.

RECITED ACTS.

The Edinburgh Tramways Act 1871.
The Edinburgh Street Tramways Act 1873.
The Edinburgh Tramways Act 1874.
The Edinburgh Tramways Act 1875.
The Edinburgh Street Tramways Act 1881.
The Edinburgh Street Tramways Act 1882.
The Edinburgh Street Tramways (Mechanical Power) Act 1882.
The Edinburgh Street Tramways Act 1892.
The Edinburgh Street Tramways Act 1893.
The Edinburgh Street Tramways Act 1896.

THE SECOND SCHEDULE.

A.D. 1904.

MINUTE of AGREEMENT between THE PROVOST MAGISTRATES AND COUNCILLORS OF THE BURGH OF LEITH (herein-after called "the Town Council") of the first part and THE EDINBURGH STREET TRAMWAYS COMPANY incorporated by the Edinburgh Tramways Act 1871 (herein-after called "the Company") of the second part.

WHEREAS the Town Council are the local authority within the district of the tramways hereinafter agreed to be sold :

And whereas the Company was incorporated by the Edinburgh Tramways Act 1871 and subsequently there were passed the following Acts relative to the Company namely the Edinburgh Street Tramways Act 1873 the Edinburgh Tramways Act 1874 the Edinburgh Tramways Act 1875 the Edinburgh Street Tramways Act 1881 the Edinburgh Street Tramways Act 1882 the Edinburgh Street Tramways (Mechanical Power) Act 1882 the Edinburgh Street Tramways Act 1892 the Edinburgh Street Tramways Act 1893 and the Edinburgh Street Tramways Act 1896 :

And whereas the tramways of the Company authorised to be constructed under the powers of the said Acts with the exception of the tramways within the burgh of Leith herein-after agreed to be sold were acquired by the corporation of the city of Edinburgh under the provisions of the Tramways Act 1870 and of the Edinburgh Street Tramways Act 1896 and the tramway undertaking of the Company now consists of the tramways herein-after agreed to be sold and which are all situate within the burgh of Leith :

And whereas by the said the Edinburgh Street Tramways Act 1896 and particularly by section twenty-five of that Act the Company on the one hand and the Town Council on the other hand were subject to the provisions of the said Act empowered to enter into and carry into effect agreements with respect to the purchase by or transfer to the Town Council as the local authority foresaid of all or any portion of the tramways works and property and undertaking of the Company situate within the district of the Town Council and of all powers privileges authorities obligations and duties of the Company in connexion therewith subject always to the passing by the Town Council as the local authority foresaid of the resolutions therein and in the Tramways Act 1870 appointed to be passed as a condition of such agreement taking effect and which resolutions have been passed by the Town Council of dates twenty-third July and first September nineteen hundred and three and also subject to the approval of the Board of Trade and subject as regards the Company to the sanction of three-fourths of the votes of the shareholders of the Company present in person or by proxy and entitled to vote and voting at a general meeting of the Company convened as therein provided for and

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 EDW. 7.]
Confirmation Act, 1904.

A.D. 1904. subject to such agreement being approved of by the Board of Trade as also therein provided :

Now these presents witness that it has been and is hereby agreed by and between the parties hereto as follows :—

First.—The Company hereby agrees to sell to the Town Council and the latter agree to purchase from the Company (One) The tramways works and property and undertaking of the Company (except as aftermentioned with regard to omnibuses) situate within the burgh of Leith and all the powers privileges and authorities of the Company in connexion therewith under the said Acts and which they are empowered to convey under the Edinburgh Street Tramways Act 1896 and particularly by section twenty-five thereof but subject to the provisions applicable thereto in the said statutes and without prejudice to the said generality (Two) All and whole the subjects situated on the east side of Leith Walk and also in Smith's Place both in the burgh of Leith (herein known as the Morton Place property) possessed by and partly occupied by the Company for stabling and other purposes in connexion with their tramway and omnibus business and partly let by the Company to tenants and all which were acquired by them conform to disposition by Mrs. Elizabeth Burton Glover or Morton and others the trustees of the deceased Hugh Morton engineer Leith in favour of the Company dated second and recorded in the General Register of Sasines applicable to the county of Edinburgh sixth both days of February eighteen hundred and ninety-four and which subjects are therein described as follows :—

[Here follows description in Titles.]

(Three) The cars horses machinery and relative plant other plant loose tools &c. which are set forth in the schedule signed as relative hereto And it is declared that the omnibuses and plant thereof belonging to the Company are not hereby sold.

Second.—The Town Council agree to pay to the Company the sum of sixty thousand pounds (60,000*l.*) sterling as the price of the subjects and others sold as aforesaid and which sum shall be paid on the date or day occurring three months after the commencement of an Act of Parliament confirming a Provisional Order or of an Act of Parliament without a Provisional Order (as the requirements of the Houses of Parliament prescribe) for tramway purposes to be forthwith promoted as after mentioned by the Town Council and shall bear interest at the rate of five per centum per annum as from the date of entry The term of entry shall be as at midnight on the evening of the said date The Town Council shall have power to fix an earlier date after the passing of the said Act into law on giving the Company reasonable notice in writing.

Third.—The Town Council undertake to promote in next session a Provisional Order or in case it be determined that the said Order should proceed as a Bill a Bill to obtain powers to work tramways or for raising money or other powers incident to the purchase and failing such Provisional Order or Bill becoming law on or before the first day of October nineteen

[4 EDW. 7.] *Leith Corporation Tramways Order* [Ch. cxxxix.]
Confirmation Act, 1904.

hundred and four it shall be in the power of either party to withdraw from this agreement and thereon the same shall become of no effect. A.D. 1904.

Fourth.—The expenses of this agreement and of the conveyance of the said heritable subjects shall be paid equally by the parties hereto.

Fifth.—This agreement is subject to the same being sanctioned at a general meeting of the Company and approved of by the Board of Trade all in pursuance of the recited Acts and particularly the Edinburgh Street Tramways Act 1896 section twenty-five.

Sixth.—On delivery of this agreement to the Company the directors of the Company shall convene a general meeting of the shareholders of the Company for the purpose of approving hereof and on such approval both parties hereto agree to apply for the approval hereof by the Board of Trade in pursuance of the said Acts.

Seventh.—The Company shall not meantime be relieved of any obligations or duties statutory or otherwise to the Town Council or otherwise but the Company shall not be liable for any incidental wear and tear of any subjects or plant occurring in the ordinary course of business between and the date of entry except that in the event of the number of horses falling under the sale being then less than two hundred the Company will supply the deficiency by horses of equal tramway working value and they shall maintain the moveable plant according to their usual practice and deliver over such plant of equal tramway working value as at present and any difference on this either as to excess or diminution shall be determined by James More civil engineer Edinburgh the consulting tramway engineer of the Town Council and James Stiven Adam the manager of the Company or in the case of their differing in opinion by an oversman to be nominated by them before entering on the duty hereby devolved upon them (all hereinafter called "the said valuers") and in such determination fluctuations in market selling value shall not be taken into account nor any mere increase in age of the horses. Any differences either in excess or in diminution shall be determined by a money finding and any delay on matters arising on this article shall not delay the granting of the conveyance to the Town Council or the payment by them of the price of sixty thousand pounds. In the event of an excess the Town Council shall have power to reject it.

Eighth.—The Company shall sell and the Town Council shall take over at a valuation all the stores of unused hay and other horse provender kept in reserve in the said Morton Place property so far as the same exist at the date of entry at a valuation to be made as at the date of entry by the said valuers.

Ninth.—The sale shall not include such apparatus as the tyre-shrinker used exclusively for the omnibus traffic purposes and any question on this shall be determined by the said valuers.

Tenth.—The sale is also subject to the current leases of the parts of the said heritable subjects sold conform to inventory annexed and signed as

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 EDW. 7.]
Confirmation Act, 1904.

A.D. 1904.

relative hereto and under the exception of the tenants fittings and property therein and the Company will not grant new or extended leases without previously consulting the Town Council or the town clerk of Leith and any loss of rental to the Company by reason of premises being unlet at the instance of the Town Council shall be paid by the Town Council and the Company shall not be bound to warn tenants to remove. The rents receivable from the said premises and the taxes and outgoings for the year current at the said date of entry shall be apportioned between the Company and the Town Council in proportion to the portions of the year before and after the said date of entry but the Town Council shall not be bound to take over the Company's advertising contract with Mr. Alexander Balfour Black or other person and the Company undertake that the Town Council shall have no obligation under said contract.

Eleventh.—Simultaneously with payment of the price the Company shall deliver to the Town Council a clear and valid disposition to the said heritable subjects and relative searches showing the records free from incumbrances all in usual form except the conditions of the title. The Town Council accept the title of the said subjects and writs relating thereto as they stand and have been exhibited to them except that the Company shall pay any casualties or other moneys payable to or which might have been claimed by the superiors prior to the date of entry.

Twelfth.—On the sale under this agreement being effected the Company shall forthwith proceed to wind up their affairs in terms of the recited Acts and particularly of the Edinburgh Street Tramways Act 1896 section twenty-five (subsection two) and thereafter the Company shall be dissolved and wholly cease to exist.

Thirteenth.—If any question or difference arise between the parties relative to these presents or in the transactions to carry out the same such questions and differences shall be and are hereby referred to Alexander Asher Esquire K.C. D.F. M.P. whom failing to Charles Scott Dickson Esquire K.C. M.P. His Majesty's Advocate as sole arbiter and in the event of such questions and differences involving any inquiry connected with the plant or other details requiring inquiry on facts about which the parties are not agreed the arbiter may if he so desire remit to the said valuers to report summarily on such facts and as the result of their inspection without the formality of proof adduced in legal form such inquiries falling to be made in any way the reporters or reporter deem satisfactory to their own minds and the said arbiter shall have power to act on such report.

Lastly.—Both parties bind and oblige themselves to implement and fulfil their respective parts of these presents the one to the other under the penalty of five hundred pounds to be paid by the party failing to the party observing or willing to observe these presents and that over and above performance and both parties consent to registration hereof for preservation.

[4 EDW. 7.] *Leith Corporation Tramways Order* [Ch. cxxxix.]
Confirmation Act, 1904.

IN WITNESS whereof &c.

A.D. 1904.

G. C. CAMPBELL

Witness.

RICHD. MACKIE

Provost.

J. SCRYMGEOUR HEPBURN

Witness.

T. B. LAING

Town Clerk.



ALASTAIR MACDONALD

Witness.

PETER TAYLOR

Director.

JAMES WRIGHT

Witness.

CHRISTOPHER MEIKLE

Director.

J. S. ADAM

Secy.



[Here follows Inventory of Leases referred to in the foregoing agreement]

THE THIRD SCHEDULE.

FORM OF BOND.

Leith Corporation Tramways.

Bond No.

By virtue of the Leith Corporation Tramways Order 1904 we the Provost Magistrates and Councillors of the Burgh of Leith in consideration of the sum of _____ instantly advanced and paid to us for the purposes of the Leith Corporation Tramways by _____ do hereby bind and oblige the said burgh out of the revenues of the Leith Corporation Tramways and out of the first and readiest of the moneys to be raised under the Burgh General Assessment to pay at the term of _____ to the said _____ executors or assignees the said sum of _____ and also the interest thereof at the rate of _____ per centum per annum from the date hereof at the terms of Whitsunday and Martinmas in each year until the said

[Ch. cxxxix.] *Leith Corporation Tramways Order* [4 Edw. 7.]
Confirmation Act, 1904.

A.D. 1904. sum is paid [declaring that as we have herewith delivered to the said
— interest warrants or coupons (in number)
for the interest to become due at the several terms prior to and at the term of
payment before specified we shall not be bound to make payment of interest
during the currency of this loan except on delivery of the said interest
warrants or coupons at or after the date when they shall respectively fall due]
and the said sum or so much thereof as may be agreed upon may in virtue
hereof remain as a loan to us until the expiration of such further term
of years and at such rate of interest as shall be specified in any minute
or minutes to be endorsed hereon and signed by our Chamberlain and
Town Clerk and which minute or minutes are hereby declared and shall be
held to be valid and binding though they be neither holograph of the said
Chamberlain or Town Clerk nor tested and for the further security of the
said we do hereby
assign to the said
executors or assignees such proportion of the said tramway revenues and
of the said moneys to be raised under the said Burgh General Assessment
as shall be equivalent to the said sum now paid to us and the interest
thereon as aforesaid from the date hereof to the term of payment and we
consent to the registration hereof for preservation and execution. In witness
whereof

(Here insert testing clause in common form.)

K.L., Witness.

M.N., Witness.

L.S.

A.B., Preses.

C.D., Town Clerk.

Examined *O.P.*, Chamberlain.

THE FOURTH SCHEDULE.

FORM OF INTEREST WARRANT.

No.

The Leith Corporation Tramways Order 1904.

INTEREST WARRANT.

Leith Corporation Tramways.

Bond No.

Dated

190 .

